

Blackfriars Bridgehead Improvements Act, 1960

8 & 9 ELIZ. 2 Ch. xlviii

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CHAPTER xlviii

An Act to authorise the Corporation of London to purchase lands compulsorily to construct a river wall and street works and for other purposes. [29th July 1960.]

WHEREAS—

(1) Traffic facilities at the junction of the northern approach to Blackfriars Bridge the Victoria Embankment New Bridge Street and Queen Victoria Street in the city of London are inadequate and inconvenient and in order to relieve traffic congestion at this road junction it is expedient to empower the Corporation of London to make and maintain the works described in this Act:

(2) It is expedient to confer on the Corporation powers relative to the purchase and use of lands for the several purposes mentioned in this Act:

(3) It is expedient that the other provisions contained in this Act be enacted:

(4) The objects of this Act cannot be attained without the authority of Parliament:

(5) Estimates have been prepared by the Corporation for and in connection with the following purposes:—

	£
The construction of the river wall authorised by this Act and works connected therewith	470,000
The construction of the street works authorised by this Act and works connected therewith	1,030,000

(6) A plan and sections showing the lines and levels of the works authorised by this Act and showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons with the clerk of the London County Council and with the town clerk of the city of London which plan sections and book of reference are in this Act referred to respectively as the deposited plan the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

- Short title. 1. This Act may be cited as the Blackfriars Bridgehead Improvements Act 1960.
- Division of Act into Parts. 2. This Act is divided into Parts as follows:—
 Part I.—Preliminary.
 Part II.—Lands.
 Part III.—Works.
 Part IV.—Protective provisions.
 Part V.—General.
- Interpretation. 3.—(1) In this Act unless there be something in the subject or context repugnant to such construction—
 “city” means the city of London;
 “commission” means the British Transport Commission;
 “Corporation” means the mayor and commonalty and citizens of the city acting by the common council;
 “county council” means the London County Council;

“enactment” includes an enactment in this Act or in any general or local Act and any order byelaw scheme or regulation for the time being in force within the city;

“Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by the Lands Tribunal Act 1949 by the Town and Country Planning Acts 1947 to 1959 and by this Act;

“limits of deviation” means the limits of deviation for the works authorised by this Act shown on the deposited plan;

“Minister” means the Minister of Transport;

“the port authority” means the Port of London Authority;

“the river wall” means Work No. 1 authorised by this Act together with the works subsidiary thereto authorised by this Act;

“the street works” means Works Nos. 2 to 9 authorised by this Act together with the works subsidiary thereto authorised by this Act;

“telegraphic line” has the same meaning as in the Telegraph Act 1878;

“town clerk” and “engineer” mean the town clerk of the city and the engineer of the Corporation and include any persons duly appointed to discharge temporarily the respective duties of those officers;

“tribunal” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919.

(2) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

(3) All distances and lengths stated in any description of works shall be construed as if the words “or thereabouts” were inserted after each such distance and length.

4. The Lands Clauses Acts except section 92 and sections 127 to 133 150 and 151 of the Lands Clauses Consolidation Act 1845 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act: Incorporation
of Acts.

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

PART II

LANDS

Power to
acquire
lands.

5.—(1) Subject to the provisions of this Act the Corporation may enter upon take and use such of the lands delineated on the deposited plan and described in the deposited book of reference as may be required for the purpose of the works authorised by this Act and the improvement and development of frontages and of lands abutting on or adjacent to any street.

(2) The powers of the Corporation for the compulsory purchase of land under this section shall cease after the thirty-first day of December nineteen hundred and sixty-three.

(3) The Corporation shall not under the powers of this section enter upon take or use the lands delineated on the deposited plan and described in the deposited book of reference and therein numbered 16 in the city.

As to
Telephone
House and
Audit House.

6. Nothing in this Act shall authorise the Corporation otherwise than by agreement to enter upon take or use the lands delineated on the deposited plan and described in the deposited book of reference and therein numbered 3 and 4 in the city.

Correction
of errors in
deposited
plan and
book of
reference.

7.—(1) If the deposited plan or the deposited book of reference are inaccurate in their description of any land or in their statement or description of the ownership or occupation of any land the Corporation after giving ten days' notice to the owner lessee and occupier of the land in question may apply to the assistant judge or any additional judge of the Mayor's and City of London Court at either of the justice rooms of the city for the correction thereof.

(2) If on any such application it appears to the judge that the misstatement or wrong description arose from mistake the judge shall certify the fact accordingly and shall in his certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments and a copy thereof in the Private Bill Office House of Commons and with the clerk of the London County Council and the town clerk and thereupon the deposited plan and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the land and execute the works authorised by this Act in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

8. The Corporation may for the purposes of constructing or maintaining the river wall use so much of the bed banks and foreshore of the river Thames as may be required for such purposes and as lies within the limits of deviation and to the north of a straight line drawn within the said limits east and west through the centre of the northernmost pier of Blackfriars Bridge. They may also for the purposes of executing and placing temporary works and conveniences in connection with the river wall occupy and use temporarily so much of the said bed banks and foreshore as may be required for those purposes and as lies within the limits of deviation and to the north of the said straight line.

PART II

—cont.

Use of shores
etc. for river
wall.

9. The Corporation may enter upon take use and appropriate so much of the subsoil and under-surface of any public street road or footway within the limits of deviation as shall be necessary for the purposes of the street works without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

Power to use
subsoil of
streets.

10.—(1) No person shall be required under this Act to sell a part only of any house building or factory or of a garden belonging to a house if he is willing and able to sell the whole of the house building factory or garden unless the tribunal determines—

Acquisition
of part only
of certain
properties.

(a) in the case of a house building or factory that such part as is proposed to be taken can be taken without material detriment to the house building or factory; or

(b) in the case of a garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(2) If the tribunal determines as aforesaid compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Corporation that part of the house building factory or garden.

11. At any time after serving a notice to treat in respect of any land which may be acquired compulsorily under this Act or in respect of any easement or right in any such land but not less than one month after giving the owner and occupier of the land notice of their intention to exercise the powers of this section the Corporation may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice or enter on the land in respect of which the easement or right is to be acquired (as the case may be) without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845:

Power to
expedite
entry.

Provided that the Corporation shall pay the like compensation for land of which possession is taken under this section or for

PART II
—cont.

the easement or right acquired and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

Power to
enter for
survey or
valuation.

12. Any person acting on behalf of the Corporation and duly authorised by the town clerk may at all reasonable times enter on any land which the Corporation are authorised by this Act to acquire compulsorily for the purpose of surveying or valuing the land:

Provided that no land shall be entered under this section unless the Corporation not less than seven days before the date of the first entry and not less than twenty-four hours before any subsequent entry have given notice to the owner and occupier of the land in manner provided by section 9 (Service of notices by Corporation) of the City of London (Various Powers) Act 1954.

Disregard of
recent
improvements
and interests.

13. In determining any question of disputed compensation or purchase money in respect of land or easements or rights in land acquired under this Act the tribunal shall not take into account—

- (a) any improvement or alteration made or building erected after the fifth day of December nineteen hundred and fifty-nine; or
- (b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.

Extinction
of private
rights of way
and rights as
to apparatus.

14.—(1) All private rights of way over and any right of laying down erecting continuing or maintaining any apparatus on under or over any land which may be acquired compulsorily under this Act shall as from the acquisition of the land whether compulsorily or by agreement be extinguished and any such apparatus shall vest in the Corporation:

Provided that this section shall not apply to any apparatus belonging to any statutory undertakers or to the right of any statutory undertakers to lay down erect continue or maintain apparatus.

(2) Any person who suffers loss by the extinguishment of any right or the vesting of any apparatus under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919.

(3) This section shall not apply to any telegraphic line belonging to or used by the Postmaster-General.

(4) In this section “statutory undertakers” has the meaning assigned to it by section 343 of the Public Health Act 1936.

15.—(1) The Corporation may instead of acquiring any land which they are authorised to acquire compulsorily under this Act acquire compulsorily such easements and rights over or in the land as they may require for the purpose of constructing using maintaining renewing or removing the works authorised by this Act or of doing any other thing necessary in connection with the works.

PART II
—cont.
Power to
acquire
easements
only.

(2) Accordingly the Corporation may give notice to treat in respect of any such easements or rights describing the nature thereof and the provisions of the Lands Clauses Acts shall apply in relation to the acquisition of such easements or rights as if they were lands within the meaning of those Acts.

(3) Where the Corporation have acquired an easement or right only over or in any land under this section—

- (a) they shall not be required or (except by agreement or during the execution of the works authorised by this Act and except in relation to the lands numbered 31 on the deposited plan) entitled to fence off or sever that land from the adjoining land;
- (b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use the land as if this Act had not been passed.

16.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may if he thinks fit subject to the provisions of those Acts grant to the Corporation any easement or right required for the purposes of this Act in over or affecting any such lands (not being an easement or right of water in which some person other than the grantor has an interest).

Grant of
easements
by persons
under
disability.

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

17. The power of the Corporation of purchasing land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites buildings or facilities for the owners and occupiers of land which may be acquired under any enactment.

Provision of
substituted
sites.

18.—(1) The Corporation may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired under this Act with respect to his reinstatement elsewhere.

Power to
reinstate
owners or
occupiers of
property.

(2) Any such agreement may provide for the exchange of land and for that purpose the Corporation may pay or receive money for equality of exchange.

PART III

WORKS

Power to
construct
works.

19.—(1) Subject to the provisions of this Act the Corporation may within the city make and maintain in the lines or situations shown on the deposited plan and according to the levels shown on the deposited sections the works referred to in this section hereafter described together with all necessary and proper works and conveniences connected therewith or incidental thereto:—

Work No. 1 A new river wall on the foreshore of the river Thames on its northern side commencing by a junction with the existing river wall at a point one hundred and seventy yards upstream from the upstream side of Blackfriars Bridge and terminating at a point one hundred and ninety yards downstream from the downstream side of Blackfriars Bridge with a stop wall between the new river wall and the existing river wall commencing by a junction with the new river wall near its termination and terminating at or near the Mermaid Theatre;

Work No. 2 A new road (No. 1) and underpass commencing by a junction with the Victoria Embankment at a point fifteen yards eastward of the junction of Carmelite Street with the Victoria Embankment passing under Blackfriars Bridge and the bridge carrying the railway of the British Transport Commission over the river Thames near Blackfriars Station and terminating at a point two hundred and eighty-five yards eastward of the point of commencement;

Work No. 3 A new road (No. 2) commencing by a junction with the new road (No. 1) and underpass (Work No. 2) hereinbefore described at the termination thereof and terminating in Queen Victoria Street at a point twenty yards westward of the junction of that street with St. Andrew's Hill;

Work No. 4 A link road (No. 1) commencing at a point eighty-five yards north-eastward from the commencement of the new road (No. 2) (Work No. 3) hereinbefore described and terminating in a turning space in Upper Thames Street at or near the junction of the said street with Puddle Dock;

Work No. 5 A subway for foot-passengers under the new road (No. 2) (Work No. 3) commencing at a point forty-seven yards eastward of the junction of Queen Victoria Street with Upper Thames Street and terminating at or near the junction of Upper Thames Street with Puddle Dock;

Work No. 6 A road widening (No. 1) of the Victoria Embankment on its northern side commencing at a point twenty-eight yards westward of its junction with Temple Avenue and terminating at a point fifteen yards eastward of the entrance to the City of London School (Boys);

Work No. 7 A link road (No. 2) commencing by a junction with the Victoria Embankment at a point fifteen yards eastward of the junction of Carmelite Street with the Victoria Embankment and terminating by a junction with the road over Blackfriars Bridge at a point twenty yards north-eastward of the northernmost pier on the upstream side of the said bridge;

Work No. 8 A regrading of the approach to Blackfriars Bridge at its northern end commencing in New Bridge Street at a point forty yards north of the junction of that street with Watergate and terminating on Blackfriars Bridge at a point two hundred and fifteen yards southward of the point of commencement;

Work No. 9 A road widening (No. 2) at the junction of New Bridge Street and Queen Victoria Street commencing at the point of commencement of the regrading (Work No. 8) hereinbefore described and terminating in Queen Victoria Street at the western side of the northern abutment of the bridge carrying the railway of the British Transport Commission over the last-mentioned street.

(2) The Corporation may by means of the river wall enclose and reclaim and may hold and use so much of the bed banks and foreshore of the river Thames as is situate on the landward side of the river wall.

20. In the construction of the works authorised by this Act the Corporation may deviate laterally from the lines or situations thereof as shown on the deposited plan to any extent not exceeding the limits of deviation and from the levels thereof as shown on the deposited sections to any extent downwards and to any extent not exceeding six feet upwards. Limits of deviation

21.—(1) Within the limits of deviation the Corporation in connection with or for the purposes of Works Nos. 2 to 9 authorised by this Act may— Subsidiary street works.

(a) make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous with those works or any of them;

PART III
—cont.

- (b) make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with those works or any of them or of crossing under or over the same or otherwise;
- (c) stop up so much of any streets as shall be rendered unnecessary by the exercise of the powers of this Act;
- (d) construct and provide carriageways footways vaults cellars arches sewers drains subways sunken or other ornamental gardens and other works and conveniences;
- (e) execute any works for the protection of any adjoining land or buildings;
- (f) remove alter divert or stop up any drain sewer channel or watercourse the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or water in any channel or watercourse; and
- (g) raise sink or otherwise alter the position of any of the steps areas cellars windows walls doors and pipes or spouts belonging to any house or building and remove all other obstructions.

(2) Any sewers drains and works (hereafter in this subsection called "apparatus") rendered unnecessary by the substitution of other apparatus therefor shall vest in the Corporation and the substituted apparatus shall be under the same jurisdiction care management and direction as the existing apparatus for which it may be so substituted.

(3) In the exercise of the powers conferred by this section the Corporation shall cause as little detriment and inconvenience as circumstances admit to any person and shall make reasonable compensation for any damage caused to any person by the exercise of such powers.

(4) Any question of disputed compensation payable under the foregoing provisions of this section shall be determined under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919.

Power to
make works
in river
Thames.

22.—(1) Subject to the provisions of this Act the Corporation may remove where necessary the existing river wall and may for the purpose of constructing the river wall and of maintaining renewing and repairing the river wall alter or interfere with the banks bed and foreshore of the river Thames and construct place maintain alter and remove caissons cofferdams piles fenders booms dolphins embankments aprons abutments piers landing stages staging pontoons wharves walls fences drains stairs buildings and all such other works and conveniences as they may deem expedient or necessary in the said river within the limits of deviation and to the north of a straight line drawn within

the said limits parallel to and twenty-five feet to the south of a straight line drawn east and west through the centre of the northernmost pier of Blackfriars Bridge and may for the purposes of this Act with the consent of the port authority (such consent not to be unreasonably withheld) close temporarily the northernmost arch of the said bridge or part thereof and so much of the second arch of the said bridge from the northern bank of the river as is north of the said straight line.

(2) The Corporation may with the consent of the port authority (such consent not to be unreasonably withheld) and subject to such reasonable conditions as the port authority may impose for the purpose of the construction or maintenance of the works authorised by this Act moor or anchor temporarily or cause to be moored or anchored temporarily vessels barges lighters or other craft in the river Thames.

(3) Any difference arising between the Corporation and the port authority under this section shall be settled by arbitration.

23.—(1) Subject to the provisions of this Act the Corporation may pump any water found by them in the construction and maintenance of the river wall and the street works and may use for the discharge of any such water the river Thames or any available stream or watercourse or any sewer or drain and for that purpose may within the limits of deviation lay down take up and alter conduits pipes and other works and make any convenient connections with the river Thames or any such stream watercourse sewer or drain:

Power to
pump water
and use
sewers for
removing
water.

Provided that—

(a) the Corporation shall not under the powers of this section discharge any water into any sewer or drain vested in or under the control of the county council except with the consent of the county council and subject to such terms and conditions (including the taking of steps to remove so far as may be reasonably practicable from water so discharged any gravel soil or other solid substance or matter in suspension) as the county council may reasonably impose; and

(b) the Corporation shall not under the powers of this section make any opening into any such sewer or drain save in accordance with plans reasonably approved by and under the superintendence (if given) of the county council.

(2) Any difference arising between the Corporation and the county council under this section shall be settled by arbitration.

24. Subject to the provisions of this Act the Corporation may cause to be removed arched over or filled up all such sewers drains docks or watercourses or parts thereof within the limits

Sewers etc.
to be removed
arched over
or filled up.

PART III
—cont.

of deviation as shall be in or under any of the lands which may be acquired under this Act and as shall become unnecessary by reason of the purchase thereof or of the property entitled to the use thereof.

Underpinning
of buildings.

25. The Corporation at their own cost and charges may subject as hereinafter provided underpin or otherwise strengthen any house or building within one hundred feet of any of the works authorised by this Act and the following provisions shall have effect:—

- (1) At least fourteen days' notice shall except in case of emergency be given in manner provided by section 9 (Service of notices by Corporation) of the City of London (Various Powers) Act 1954 to the owners lessees and occupiers of the house or building intended to be so underpinned or otherwise strengthened:
- (2) If any owner lessee or occupier of any such house or building within seven days after the giving of such notice gives a counter-notice in writing that he disputes the necessity of such underpinning or strengthening the question of the necessity shall be settled by arbitration:
- (3) The Corporation shall be liable to compensate the owners lessees and occupiers of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers granted by this section provided that the claim for compensation in respect of the loss or damage be made within three months from the occurrence thereof:
- (4) In any case in which any house or building has been underpinned or strengthened under the powers of this section the Corporation may from time to time after the completion of the underpinning or strengthening and during the execution of the work in connection with which the underpinning or strengthening was done or within twelve months after the completion of that work enter upon and survey the house or building and do such further underpinning or strengthening thereof as they may deem necessary or expedient or as in the case of dispute between the Corporation on the one hand and the owner lessee or occupier of the house or building on the other hand shall be settled by arbitration:
- (5) If in any such case as is referred to in the last foregoing paragraph the underpinning or strengthening done by the Corporation at any time within twelve months from the completion of the work in connection with which

the underpinning or strengthening was done proves inadequate for the support or protection of the house or building against further injury arising from the execution of that work the Corporation shall make compensation to the owner lessee and occupier of the house or building for such injury provided that the claim for compensation in respect thereof be made within one month from the discovery thereof:

PART III
—cont.

- (6) Nothing in this section nor any dealing with any property in pursuance of this section shall relieve the Corporation from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (7) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Lands Clauses Acts.

26. Subject to the provisions of this Act the Corporation may for the purposes of or in connection with the works authorised by this Act and within the limits of deviation construct and execute all such bridges arches piers viaducts embankments tunnels abutments wing walls and other works as they may deem necessary or expedient for carrying the said works over or under any railway stream watercourse or land and may for the purpose of and during the execution of the said works over or under any railway erect place or execute and maintain upon over or under such railway all such temporary structures erections works apparatus and appliances as may be necessary or convenient.

Power to
construct
bridges etc.
and to
execute
temporary
works on
railways.

27. There shall be by virtue of this Act vested in the Corporation—

Vesting and
disposal
of materials.

- (a) all lamp-posts paving metalling and other materials in over or under any street or part of a street stopped up altered or diverted under the powers of this Act; and
- (b) all materials obtained in the alteration of or interference with any street sewer or drain in connection with the works authorised by this Act;

and the Corporation may appropriate and use or sell or dispose of the same or any of them.

28.—(1) The subway (Work No. 5) authorised by this Act shall for police and all other purposes form part of the public way within the city.

Subway to
be public
way.

PART III
—cont.

(2) The Corporation or the commissioner of the city police shall have power to close all public entrances to the said subway at such time and for such purposes as they may deem necessary.

Power to
stop up ways
temporarily.

29.—(1) Subject to the provisions of this Act the Corporation may for the purposes of and during the construction of the street works stop up open break up and interfere with alter or divert temporarily all or any part of the carriageway or footway of any street or part of a street or of any subway within the limits of deviation and may execute and do all necessary works and things for or in connection with such stopping up opening breaking up interference alteration or diversion and for keeping such carriageway or footway open for traffic and may remove or alter any monuments drinking fountains lamp-posts street-refuges posts and other erections within the limits of deviation.

(2) The Corporation shall provide reasonable access for all persons bona fide going to or returning from any premises in any street of which the carriageway or footway is stopped up interfered with altered or diverted under the powers of this section.

(3) The Corporation shall not exercise the powers of this section so as to obstruct or interfere with the access to or exit from any station or property of the commission without the consent of the commission nor without such consent to remove or alter any erections belonging to the commission but any such consent shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld shall be determined by arbitration.

Power to
prevent
access to or
from street
works.

30.—(1) For the purpose of facilitating the movement of vehicular traffic along the route of Works Nos. 2 to 9 authorised by this Act or the safety of the public or otherwise the Minister on the application of the Corporation may from time to time authorise the Corporation at or in the vicinity of the junction of any street with the said works to erect or remove barriers for the prevention prohibition or limitation of access by vehicular traffic to or from such route from or to any such street or notices prohibiting or limiting such access.

(2) The Corporation shall give such public notice of the making of an application under subsection (1) of this section as the Minister may direct.

(3) Any person who without lawful authority or excuse removes or interferes with any such barrier or removes defaces or fails to comply with any such notice shall be liable to a fine not exceeding five pounds for each offence.

PART IV

PROTECTIVE PROVISIONS

31.—(1) Unless otherwise agreed in writing between the Corporation and the Postmaster-General—

For
protection of
Postmaster-
General.

- (a) the provisions of the Public Utilities Street Works Act 1950 shall apply and have effect in relation to the works authorised by this Act (other than any works executed under section 23 (Power to pump water and use sewers for removing water) of this Act) as if those works were mentioned in paragraph (a) of subsection (1) of section 21 of that Act :

Provided that for the purposes of such application the provisions of the said Act of 1950 shall have effect—

(i) so as to impose on the Corporation an obligation before commencing any of the said works to give notice to the Postmaster-General under paragraph 2 of the Fourth Schedule to that Act together with plans sections and particulars of the works to be commenced; and

(ii) as if accordingly the words in parenthesis in paragraph 3 of the said schedule relating to a road alteration were omitted from the paragraph;

- (b) the provisions of section 26 of the said Act of 1950 (which deals with undertakers' works which are likely to affect other undertakers' apparatus) shall apply to and in relation to the laying down taking up or altering of conduits pipes or other works under the said section 23 as if executed for purposes other than road purposes.

(2) Where in pursuance of the powers conferred by subsection (1) of section 21 (Subsidiary street works) of this Act any street or part of a street is diverted or stopped up the following provisions of this subsection shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have effect in relation to so much of any telegraphic line belonging to or used by the Postmaster-General as is under in upon over along or across any land which by reason of the diversion or stopping up ceases to be a street (in this subsection referred to as "the affected line") that is to say:—

- (a) the power of the Postmaster-General to remove the affected line shall be exercisable notwithstanding the diversion or stopping up of the street or part of the street so however that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of three

PART IV
—cont.

months from the date of the sending of the notice referred to in subsection (3) of this section unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the affected line or that part thereof (as the case may be);

- (b) the Postmaster-General may by notice in that behalf to the Corporation abandon the affected line or any part thereof and shall be deemed as respects the affected line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) the Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the affected line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line a telegraphic line in such other place as he may require;
- (d) where under paragraph (b) of this subsection the Postmaster-General has abandoned the whole or any part of the affected line it shall vest in the Corporation and the provisions of the Telegraph Acts 1863 to 1954 shall not apply in relation to it as respects anything done or omitted after the abandonment thereof.

(3) As soon as practicable after the whole or part of a street has been diverted or stopped up in pursuance of the powers referred to in subsection (2) of this section the Corporation shall send by post to the Postmaster-General a notice informing him of the diversion or stopping up.

(4) The temporary stopping up or diversion of the whole or any part of the carriageway or footway of any street or part of a street or of any subway under the powers conferred by subsection (1) of section 29 (Power to stop up ways temporarily) of this Act shall not prejudice or affect any right of the Postmaster-General—

- (a) to maintain inspect repair renew or remove any telegraphic line belonging to or used by him which at the time of the stopping up or diversion was under in upon over along or across that carriageway footway or subway or part thereof as the case may be; or
- (b) for the purpose of such maintenance inspection repair renewal or removal to enter upon break open or carry out works in that carriageway footway or subway or part thereof as the case may be.

32. For the protection of the county council the following provisions shall unless otherwise agreed in writing between the Corporation and the county council apply and have effect:—

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—cont.

For
protection of
London
County
Council.

- (1) In this section unless the subject or context otherwise requires—

“county council’s engineer” means the chief engineer of the county council or other officer duly authorised to exercise the functions of such chief engineer;

“sewer” means the Fleet Sewer (main line) the Fleet Storm Relief Sewer the Low Level Sewer No. 1 (main line) the Purfleet Wharf Sewer and other the sewers of the county council or any such sewers and shall be deemed to include the Queen Victoria Street pipe subways vested in the county council and administered by them under the London County Council (Subways) Act 1893 and the Blackfriars unfiltered water main situate beneath the Victoria Embankment and John Carpenter Street in the city laid by the county council pursuant to a scheme approved by the Secretary of State under section 58 of the Civil Defence Act 1939;

“specified works” means so much of the river wall (Work No. 1) authorised by this Act or the street works as will or may pass over under or by the side of or interfere with any sewer:

- (2) The Corporation shall not commence the construction of any of the specified works until they shall have given to the county council twenty-eight days’ previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the county council with plans as described in paragraph (9) of this section (in this section referred to as “the said plans”) and until the county council shall have signified their approval of the same (unless the county council do not signify their approval disapproval or other directions within twenty-eight days after service of the said plans):
- (3) The Corporation shall comply with and conform to all reasonable orders directions and regulations of the county council in the execution of the specified works and shall provide new altered or substituted works in such manner as the county council shall reasonably require for the proper protection of and for preventing injury or impediment to any sewer by reason of the specified works and shall save harmless the county council against all expenses to be occasioned thereby:

PART IV
—cont.

- (4) All such new altered or substituted works shall where reasonably so required by the county council be done by or under the direction superintendence and control of the county council's engineer at the cost in all respects of the Corporation and all costs charges and expenses which the county council may reasonably incur by reason of such works whether in the execution of works the preparation or examination of plans or designs superintendence or otherwise shall be paid to the county council by the Corporation:
- (5) When any such new altered or substituted works or any protective works connected therewith shall be completed by or at the cost of the Corporation under the provisions of this section the same shall thereafter be as fully and completely under the direction jurisdiction and control of the county council as any sewers now or hereafter may be:
- (6) Nothing in this Act shall extend to prejudice diminish alter or take away any of the rights powers or authorities vested or to be vested in the county council in relation to sewers but all such rights powers and authorities shall be as valid and effectual as if this Act had not been passed:
- (7) The county council may require the Corporation in constructing the specified works to make any reasonable deviation within the limits of deviation of such works from the line or levels shown upon the said plans for the purpose of avoiding injury or risk of injury to the sewers of the county council and the Corporation shall in constructing such works deviate from the line or level thereof in accordance with any such reasonable requirement of the county council:
- (8) The county council's engineer may from time to time enter upon and inspect any works of the Corporation constructed under this Act under or in the neighbourhood of any street or road or part of a street or road in or under which there are or may be any sewers and any works which under the provisions of this section are required to be constructed in accordance with plans sections and specifications approved by the county council:
- (9) The plans to be submitted to the county council for the purposes of this section shall be detailed plans drawings sections and specifications which shall describe the exact position and manner in which and the level at which the said works are proposed to be constructed and shall accurately describe the position of all sewers of the county council within the limits of deviation of

the specified works (for which purpose the county council shall allow the Corporation access to plans in their possession and to any of their sewers in order to enable the Corporation to obtain reliable information) and shall comprise detailed drawings of every alteration which the Corporation may propose to make in any such sewer:

- (10) The county council may require such modifications to be made in the said plans as may be reasonably necessary to secure the London main drainage system against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers:
- (11) The Corporation shall be liable to make good all injury or damage caused by or resulting from the construction of the specified works to any sewers or to any drains or works vested in the county council:
- (12) The approval by the county council of any plans or the superintendence by them of any work under the provisions of this section shall not exonerate the Corporation from any liability or affect any claim for damages under this section or otherwise:
- (13) If the Corporation in the construction of any of the specified works alter damage or in any way interfere with the existing sewers of the county council respectively known as the Fleet Sewer (main line) the Fleet Storm Relief Sewer the Low Level Sewer No. 1 (main line) and the Purfleet Wharf Sewer the Corporation shall—
 - (a) from time to time pay to the county council any additional cost to which the county council may be put in the maintenance management or renewal of any new altered or substituted sewer which may be necessary in consequence of the construction of the specified works; and
 - (b) give to the county council full free and uninterrupted access at all times to any such new altered or substituted sewer and every reasonable facility for the inspection maintenance alteration and repair thereof.

33. For the further protection of the county council the following provisions shall unless otherwise agreed in writing between the Corporation and the county council apply and have effect:—

For further
protection of
London
County
Council.

- (1) If the Corporation under the powers of this Act—
 - (i) acquire any part of the lands delineated on the deposited plan and described in the deposited book

PART IV
—cont.

of reference and therein numbered 7 in the city they shall to the reasonable satisfaction of the county council carry out such works of reinstatement to the remainder of the property within the same curtilage as may be reasonably required by the county council;

(ii) acquire the pier belonging to the county council known as the Scantling Pier and the pumping station situate at the western end thereof they shall at the expense of the Corporation reinstate the pumping station in such other position and in such manner in all respects as may be reasonably required by the county council:

- (2) During the construction of the river wall (Work No. 1) authorised by this Act and at all times after the completion thereof the Corporation shall provide and maintain to such extent as may be necessary and to the reasonable satisfaction of the county council means of access from the river wall to the Scantling Pier (if not acquired by the Corporation) and the pumping station referred to in paragraph (1) of this section:
- (3) (a) The Corporation before commencing to construct any part of the river wall (Work No. 1) authorised by this Act which will or may involve interference with such part of the existing river wall as is at present maintainable by the county council (hereinafter in this section referred to as "the said works") shall give to the county council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the county council with plans sections and specifications thereof for the reasonable approval of the county council and shall not commence the said works until the county council have signified their approval of the same (unless the county council do not signify their approval disapproval or other directions within twenty-eight days after service of the said plans or it is determined by arbitration that approval has been unreasonably withheld);
- (b) The Corporation shall comply with and conform to all reasonable orders directions and regulations of the county council in the execution of the said works and shall at their own expense make good all injury or damage caused by or resulting from the construction of the said works and in particular shall restore or reinstate any part of the existing river wall that may be interfered with or taken away and shall use for such restoration or reinstatement granite facing in conformity with the existing river wall;

(c) The Corporation shall during the execution of the said works give reasonable facilities for the engineer of the county council or other duly authorised officer of the county council at all reasonable times to enter upon and inspect any part of the said works:

(4) Any difference arising between the Corporation and the county council under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

34. For the protection of the commission the following provisions shall unless otherwise agreed in writing between the Corporation and the commission apply and have effect:—

For protection
of British
Transport
Commission.

(1) In this section—

“the underground railways” means the District Railway and the Waterloo and City Railway of the commission and the lands works or premises belonging to or occupied by the commission for the purposes of the said railways and shown on the deposited plan;

“the railway” means the lands railways railway works or premises belonging to the commission shown on the deposited plan other than the underground railways;

“railway property” means the underground railways or the railway or both as the case may be;

“the specified works” means—

(a) so much of any of the works authorised by this Act as may be within a distance of fifty feet measured in any direction from the underground railways and for the purposes of paragraphs (9) and (11) of this section but not further or otherwise so much of the river wall as may be within a distance of one hundred and fifty feet measured in any direction from the underground railways; and

(b) so much of any of the works authorised by this Act not being a work referred to in subparagraph (a) of this paragraph as may be situated upon across under or over the railway or the construction of which may in any way affect the same;

“the commission’s engineer” means an engineer to be appointed by the commission;

“construction” includes renewal and for the purposes of paragraphs (11) (13) (14) and (17) of this section includes maintenance and repair:

PART IV
—cont.

- (2) The Corporation shall not under the powers of this Act acquire compulsorily any lands or property of the commission but the Corporation may acquire compulsorily such easements and rights in the lands of the commission as they may reasonably require for the purposes of the specified works:
- (3) The Corporation shall not without the consent of the commission (such consent not to be unreasonably withheld) in the construction of the specified works within a distance of ten feet from the underground railways deviate laterally towards the said railways from the line of those works shown on the deposited plan nor downwards towards the said railways from the levels shown on the deposited sections:
- (4) The Corporation shall before commencing the construction of any of the specified works furnish to the commission sufficient plans sections and particulars thereof for the approval of the commission's engineer which approval shall not be unreasonably withheld and shall not commence the construction thereof until such plans sections and particulars shall have been approved by the commission's engineer or in case of difference between the engineer and the commission's engineer until they shall have been settled by arbitration:

Provided that if within twenty-eight days after such plans sections and particulars have been furnished to the commission the commission's engineer shall not have intimated his approval or disapproval thereof he shall be deemed to have approved them:
- (5) If within twenty-eight days after such plans sections and particulars have been furnished to the commission the commission shall give notice to the Corporation and it is agreed or determined that in consequence of the nature of any of the specified works it is reasonably necessary that the commission should themselves construct any part of those works then if the Corporation desire that part of those works to be constructed the commission shall construct it with all reasonable dispatch on behalf of and to the reasonable satisfaction of the Corporation in accordance with the plans sections and particulars approved or deemed to be approved or settled as aforesaid (hereinafter in this section called "the approved plans") and the Corporation shall pay to the commission the reasonable cost of so doing:
- (6) Upon signifying his approval or disapproval of plans sections and particulars of the specified works the commission's engineer may specify any temporary or

permanent protective works which should be carried out before the commencement of the construction of any of the specified works to ensure the stability of railway property or to protect it from injury or to avoid unnecessary delay or inconvenience to railway passengers and such temporary or permanent protective works as may be reasonably necessary for those purposes shall be constructed by the commission with all reasonable dispatch and the reasonable cost of such protective works shall be paid by the Corporation and if such protective works are constructed by the commission with all such reasonable dispatch the Corporation shall not commence the construction of such specified works until the commission's engineer shall have notified the Corporation that such protective works have been completed:

- (7) The Corporation shall except in cases of emergency give the commission's engineer twenty-eight days' notice of their intention to commence the construction of any of the specified works:
- (8) The construction of the specified works (or so much thereof as shall be carried out by the Corporation) shall be carried out in accordance with the approved plans and under the supervision (if given) and to the reasonable satisfaction of the commission's engineer and in such manner and with such reasonable dispatch as to cause as little damage as may be to railway property and as little interference as may be with the conduct of railway traffic and the use by passengers of railway property and if any damage to railway property or any such interference shall be caused by the construction of the specified works by the Corporation the Corporation shall notwithstanding any such approval as aforesaid forthwith make good such damage and pay to the commission the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of any such damage or interference:

Provided that nothing in this paragraph shall impose any liability on the Corporation with respect to any damage costs expenses or loss which may be attributable to the act neglect or default of the commission or their agents:

- (9) The Corporation shall at all times afford reasonable facilities to the commission's engineer for access to the specified works during their construction and shall supply him with all such information as he may reasonably require with regard to such works or the method of construction thereof:

PART IV
—cont.

- (10) The commission shall at all times afford reasonable facilities to the Corporation or the engineer for access to any works carried out by the commission under this section and shall supply the Corporation with all such information as they may reasonably require with regard to such works or the method of construction thereof:
- (11) If at any time during the construction of any of the specified works by the Corporation the safety of railway property is in the opinion of the commission's engineer endangered thereby the Corporation shall immediately on being notified thereof by the commission's engineer stop the construction of those works and not recommence the same until after the commission's engineer shall have notified the Corporation that such remedial works as he shall reasonably require to ensure the safety of railway property have been carried out at the expense of the Corporation either by the Corporation or if it is reasonably necessary by the commission:
- (12) If any alterations or additions either permanent or temporary to railway property are reasonably necessary during the construction of the specified works or during a period of twelve months after the completion thereof in consequence of the construction of the specified works by the Corporation such alterations and additions may be effected by the commission after not less than twenty-eight days' notice (or in case of emergency such notice as may be reasonably practicable) has been given to the Corporation and the Corporation shall repay to the commission the reasonable costs thereof including a capitalised sum representing the increased or additional cost of maintaining working and when necessary renewing railway property in consequence of any such alterations or additions:

Provided that if the cost of maintaining working or renewing railway property is reduced in consequence of any such alterations or additions a capitalised sum representing such saving may be set off against any sum payable by the Corporation to the commission under this section:

- (13) The Corporation shall repay to the commission all costs charges and expenses reasonably incurred by the commission—

(a) in respect of the employment of any inspectors signalmen watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting watching lighting and signalling railway property

for preventing so far as may be interference obstruction danger or accident arising from the construction of the specified works;

(b) in respect of any special traffic working resulting from any speed restrictions or substitution or diversion of railway services which may be imposed or made in consequence of the construction of the specified works; and

(c) in additional lighting of railway property in the vicinity of the specified works being lighting made reasonably necessary by reason of the construction of those works:

- (14) The Corporation shall be responsible for and make good to the commission all costs charges damages and expenses which may be occasioned to the commission by reason of any act or omission of the Corporation or of any persons in their employ or of their contractors or others whilst engaged upon the construction of the specified works and the Corporation shall effectively indemnify and hold harmless the commission from and against all claims and demands arising out of or in connection with the construction of the specified works or any such act or omission as aforesaid and the fact that any work or thing may have been done by the commission on behalf of the Corporation or in accordance with any plan section or particulars approved by the commission's engineer or in accordance with any requirement of the commission's engineer or under his supervision shall not (if it was done without negligence on the part of the commission or of any person in their employ or of their contractors or others whilst engaged upon the works) excuse the Corporation from any liability under the provisions of this section:

Provided that the commission shall give to the Corporation reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Corporation:

- (15) All temporary structures erections works apparatus and appliances erected or placed by the Corporation under the powers of section 26 (Power to construct bridges etc. and to execute temporary works on railways) of this Act upon over or under any railway of the commission shall as soon as practicable be removed by the Corporation to the reasonable satisfaction of the commission and in such a way as to cause as little damage to railway property and as little interference

PART IV
—cont.

with or interruption to the traffic on the railways of the commission as may be and if any damage to railway property or such interference delay or interruption shall be caused by the erection or placing of any such temporary structures erections works apparatus or appliances the Corporation shall forthwith make good such damage and pay to the commission the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of such damage interference delay or interruption:

- (16) The Corporation shall not under the powers of this Act unnecessarily interfere with the tidal flaps on the Fleet Sewer of the county council or do anything to impair the proper functioning of such tidal flaps so as to endanger or affect railway property:

Provided that if the Corporation require to extend divert or move the outfall of the said sewer nothing in this paragraph shall prevent the Corporation from carrying out any such work of extension diversion or moving subject in the case of any such work which may affect railway property to the foregoing provisions of this section relating to the submission and approval of plans and the carrying out of works in accordance with approved plans:

Provided always that in the event of any inconsistency between any plans sections and particulars approved under the provisions of section 32 (For protection of London County Council) of this Act or any requirements made and having effect under the provisions of the said section 32 in relation to the construction of any work affecting the said outfall and any plans sections and particulars approved by the commission or any requirement made by the commission under this section in relation thereto the Corporation shall be deemed to have complied with the requirements of this section if they comply with the plans sections and particulars approved or the requirements having effect under the provisions of the said section 32:

- (17) In the construction of the specified works the Corporation—

(a) shall not interfere with or impair vehicular or pedestrian access to Blackfriars Station or Blackfriars Underground Station except as may be reasonably necessary for the construction of the specified works;

(b) shall not abandon any part of the subways or the entrances thereto shown coloured yellow on the plan signed in triplicate by Alfred Henry Cantrell and Cedric Ethelwulf Dunton on behalf of the commission and by Francis John Forty on behalf of the Corporation two copies of which have been deposited with the commission and one copy with the Corporation;

(c) shall provide access to the reasonable satisfaction of the commission to Blackfriars Station at surface level for vehicles and pedestrians in the situation so far as the same may be reasonably practicable shown as the approximate line of service road on the said plan; and

(d) shall provide a crossing for pedestrians over or under Blackfriars Bridge (which crossing if reasonably practicable shall be by means of a subway) in the position as near as may be shown coloured blue on the said plan:

(18) The Corporation shall in constructing the road widening (Work No. 9) authorised by this Act divert and extend the existing public subway terminating at the junction of New Bridge Street and Queen Victoria Street so as to provide access to such subway from the pavement at the junction of the said streets after the construction of the said Work No. 9 and after the diversion and extension of the said public subway the new portion thereof shown coloured pink on the plan referred to in paragraph (17) of this section shall be treated for all purposes as part of the public subways and shall be maintained repaired lighted and policed by and at the cost of the Corporation and paragraph 9 of the agreement dated the fourth day of February nineteen hundred and twenty-six and made between the Corporation of the one part and the Metropolitan District Railway Company of the other part shall apply as between the Corporation and the commission to the extended public subway as it applies to the existing public subway:

(19) In the event of the Corporation abandoning any of the existing public subways at or near to the approach to Blackfriars Bridge or any part of such subways the Corporation shall fill in or otherwise make good to the reasonable satisfaction of the commission's engineer any part of such abandoned subway which is connected to or is within a distance of ten yards from the tunnel of the District Railway of the commission so as to prevent any danger of damage to the said tunnel:

PART IV
—cont.

- (20) The Corporation shall so exercise the powers of this Act as to avoid interference with the construction by the commission of Work No. 1 (being an enlargement of the tunnel of their District Railway) authorised by section 5 (Power to make works) of the British Transport Commission Act 1958 if and so long as the construction of the said work is completed before the first day of June nineteen hundred and sixty-two:
- (21) Any difference arising between the Corporation or the engineer and the commission or the commission's engineer under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For protection
of certain
statutory
undertakers.

35. For the protection of certain statutory undertakers the following provisions shall unless otherwise agreed in writing between the Corporation and the statutory undertakers concerned apply and have effect:—

- (1) In this section unless the subject or context otherwise requires—

“ Act of 1950 ” means the Public Utilities Street Works Act 1950;

“ apparatus ” means—

(a) electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by the London Electricity Board;

(b) mains pipes valves syphons stopcocks or other works or apparatus belonging to or maintained by the North Thames Gas Board; or

(c) mains pipes valves hydrants stopcocks or other works or apparatus belonging to or maintained by the Metropolitan Water Board;

and includes any works constructed for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under over across along or upon;

“ position ” includes depth;

“ statutory undertakers ” means—

the London Electricity Board;

the North Thames Gas Board; and

the Metropolitan Water Board;

or any of them and in relation to any apparatus or property means the statutory undertakers to whom the

the

apparatus is maintained and in relation to the supply of electricity gas or water means the statutory undertakers by whom the supply is provided:

- (2) Notwithstanding anything in this Act or shown on the deposited plan or contained in the deposited book of reference the Corporation shall not under the powers of this Act acquire any apparatus compulsorily:
- (3) Subject to the provisions of this section the provisions of the Act of 1950 shall apply and have effect in relation to the works authorised by this Act (other than any works executed under section 23 (Power to pump water and use sewers for removing water) of this Act) as if those works were mentioned in paragraph (a) of subsection (1) of section 21 of the Act of 1950:

Provided that for the purposes of such application the provisions of the Act of 1950 shall have effect—

(a) so as to impose on the Corporation an obligation before commencing any of the said works to give notice to the statutory undertakers concerned under paragraph 2 of the Fourth Schedule to the Act of 1950 together with plans sections and particulars of the works to be commenced; and

(b) as if accordingly the words in parenthesis in paragraph 3 of the said schedule relating to a road alteration were omitted from the paragraph:

- (4) Where in consequence of the construction of the new road and underpass (Work No. 2) or the subway (Work No. 5) or the regrading (Work No. 8) authorised by this Act or of any subway under the powers of section 21 (Subsidiary street works) of this Act the position of any apparatus is required to be altered so as to pass under that work or subway the Corporation shall repay to the statutory undertakers any additional expenses reasonably incurred by the statutory undertakers in consequence of the alteration of the position of the apparatus in breaking open or reinstating any street or in inspecting maintaining repairing removing or renewing the apparatus and in the case of the North Thames Gas Board any expenses reasonably incurred by that board in providing installing inspecting or maintaining any syphons the provision of which is necessary in consequence of the alteration of position of the apparatus:
- (5) In exercising the powers of the said section 21 of this Act the Corporation shall cause as little inconvenience in relation to access by the statutory undertakers to apparatus as the circumstances of the case will admit:

PART IV
—cont.

- (6) Where a street in which any apparatus is situated has been permanently stopped up or diverted by the Corporation under the powers of the said section 21 of this Act the statutory undertakers shall notwithstanding such stopping up or diversion continue to have the same powers and rights in respect of the apparatus remaining in the land which by reason of the stopping up or diversion has ceased to be a street as they would have if it had remained a street or the statutory undertakers may and if reasonably required by the Corporation shall—

(a) remove the apparatus and relay or replace it in the street (if any) substituted for the street so stopped up or diverted or in such other position as the statutory undertakers may reasonably determine; or

(b) provide and lay or place in the street (if any) so substituted or in such other position as aforesaid other apparatus in place of the existing apparatus:

- (7) The Corporation shall repay to the statutory undertakers the reasonable expenses incurred by the statutory undertakers in or in connection with the carrying out of such works as are referred to in sub-paragraphs (a) and (b) of the last foregoing paragraph (whether or not the Corporation have required those works to be carried out) including expenses so incurred in cutting off any apparatus from any other apparatus and in doing any work rendered necessary in consequence of carrying out the said works:

Provided that subsections (3) and (4) of section 23 of the Act of 1950 (which impose limitations on undertakers' rights to payment) shall so far as applicable extend and apply to any payment to be made by the Corporation under this paragraph as if the works in respect of which the payment is to be made were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act" there were substituted the words "agreed or settled by arbitration under section 35 (For protection of certain statutory undertakers) of the Blackfriars Bridgehead Improvements Act 1960":

- (8) Notwithstanding anything in section 23 (Power to pump water and use sewers for removing water) of this Act no use shall in the construction of the works authorised by this Act be made by the Corporation of pumping or other like modes of removing water except where

reasonably necessary or in the case of emergency or unforeseen accident or for the purpose of removing rainwater or other trifling amounts of water and the provisions of section 26 of the Act of 1950 (which deals with undertakers' works which are likely to affect other undertakers' apparatus) shall apply to and in relation to the laying down taking up or altering of conduits pipes or other works under the said section 23 as if executed for purposes other than road purposes:

- (9) The temporary stopping up or diversion of the whole or any part of the carriageway or footway of any street or part of a street or of any subway under the powers of section 29 (Power to stop up ways temporarily) of this Act shall not prejudice or affect any right of the statutory undertakers—

(a) to maintain operate inspect repair renew or remove any apparatus which at the time of the stopping up or diversion is in the carriageway footway or subway or part thereof as the case may be; or

(b) for the purpose of such maintenance operation inspection repair renewal or removal to enter upon break open or carry out works in that carriageway footway or subway or part thereof as the case may be:

- (10) The Corporation shall so far as is reasonably practicable so exercise the powers conferred by section 30 (Power to prevent access to or from street works) of this Act as not to obstruct or render less convenient the access to any apparatus:

- (11) If by reason or in consequence of the execution by the Corporation of the works authorised by this Act any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal or abandonment) or property of the statutory undertakers or any interruption in the supply of electricity gas or water by the statutory undertakers shall be caused the Corporation shall bear and pay the cost reasonably incurred by the statutory undertakers in making good such damage and shall—

(a) make reasonable compensation to the statutory undertakers for any loss sustained by them; and

(b) indemnify the statutory undertakers against all claims demands proceedings costs damages and expenses which may be made or taken against or recovered from or incurred by the statutory undertakers;

by reason or in consequence of any such damage or interruption:

PART IV
—cont.

Provided that—

(i) nothing in this paragraph shall impose any liability on the Corporation with respect to any damage or interruption which may be attributable to the act neglect or default of the statutory undertakers or their contractors or workmen;

(ii) the statutory undertakers shall give to the Corporation reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Corporation:

- (12) The expenses of all repairs or renewals of any apparatus which may be rendered necessary by reason or in consequence of the construction of any of the works authorised by this Act or any subsidence resulting from those works shall be borne by the Corporation and paid by them to the statutory undertakers:
- (13) The Corporation shall bear and pay any cost reasonably incurred by the statutory undertakers in the reasonable employment of watchmen and inspectors during the execution under the powers of this Act of any work which will or may interfere with or affect any apparatus:
- (14) Any difference arising between the Corporation and the statutory undertakers under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration:
- (15) The provisions of this section shall have effect notwithstanding anything in the Act of 1950.

For protection
of Port of
London
Authority
and river
users.

36. For the protection of the port authority and river users the following provisions shall unless otherwise agreed in writing between the Corporation and the port authority apply and have effect:—

(1) In this section—

“the river” means the river Thames and where the context so admits includes the bed banks and shores thereof within the jurisdiction of the port authority but does not include any part of the river Thames or of the bed banks and shores thereof as is situate on the landward side of the river wall after the completion thereof;

“river works” means any part of the river wall which is situate in on over or under the river and the removal alteration diversion or stopping up of any outfall to the river so situate of any drain sewer channel or watercourse within the limits of deviation:

- (2) Notwithstanding anything in this Act or shown on the deposited plan or the deposited sections or contained in the deposited book of reference the Corporation shall not construct the river wall (Work No. 1) authorised by this Act so that any part of the parapet thereof is situate south of the line marked on the deposited plan and thereon denoted "Line of River Wall (Work No. 1)" or so that any other part of the river wall is situate south of a straight line drawn east and west through the centre of the northernmost pier of Blackfriars Bridge:
- (3) Except in a case of emergency and with the consent in every such case of the port authority the Corporation shall not carry out any operation for placing any works in the river in the second arch of Blackfriars Bridge from the northern bank of the river except during periods of ebb tide:
- (4) (a) Before commencing to execute any river works under the powers of this Act the Corporation shall submit to the port authority plans sections and particulars of the river works for their reasonable approval (which approval may be given subject to such reasonable requirements as to the construction of works for the purpose of protecting navigation of the river as the port authority may make) and the river works shall be deemed to be works upon the bed or shores of the river commenced or executed under the direction or with the licence consent or permission of the port authority within the meaning of section 244 (Certain works to be approved by the Board of Trade) of the Port of London (Consolidation) Act 1920;
- (b) If the port authority do not within twenty-eight days of the submission to them of any plans sections or particulars pursuant to this paragraph intimate to the Corporation their approval or disapproval thereof they shall be deemed to have approved the same:
- (5) (a) All such works as are referred to in paragraph (4) of this section shall when commenced be proceeded with and completed as soon as practicable and the Corporation shall upon completion of any part of any such works remove any temporary works and materials for temporary works which may have been erected or placed in on over or under the river for the purpose of or in connection with such part of such works; and
- (b) The said works shall be constructed and maintained and in the case of temporary works removed to the reasonable satisfaction of the chief engineer of the port

PART IV
—cont.

authority for the time being and in the construction and maintenance thereof traffic on the river shall not be interfered with more than may be reasonably necessary:

- (6) The Corporation shall allow an authorised representative of the port authority to inspect and survey all or any of the works constructed in on over or under the river or on lands immediately adjacent thereto by the Corporation under the powers of this Act while in course of construction or maintenance and shall give all reasonable facilities for so doing:
- (7) (a) The Corporation shall not (except in so far as may be necessary in the construction of the works authorised by this Act) deposit in or take from the river (excluding any part thereof which may be acquired by the Corporation under this Act) any gravel soil or other material without the previous consent of the port authority signified in writing under the hand of the secretary of the port authority for the time being;
(b) Any gravel soil or other material necessarily removed from the river by the Corporation during the construction of the works authorised by this Act shall not be allowed to fall into or to be washed into the river:
- (8) (a) Any old pile stumps which may at any time become exposed in consequence of and during the construction of the river works (other than any pile stumps situate on the site of any permanent works) shall be drawn from the river to the satisfaction of the port authority and not cut off;
(b) If the Corporation fail to draw from the river any such old pile stump after receipt of a notice in writing from the port authority the port authority may themselves carry out such removal charging the Corporation with the expense of so doing and the Corporation shall repay to the port authority all expenses so incurred:
- (9) The port authority shall not be liable in the absence of negligence for any damage or injury to any temporary work in on over or under the river authorised by this Act resulting from the dredging operations of the port authority or the carrying out by them in the execution of their statutory powers and duties of any operations in the river or works for the improvement or maintenance thereof:
- (10) The Corporation shall bear and pay any additional cost to which the port authority may be put in dredging the river as a result of any accumulation of mud or silt

which may occur before any extension of the river wall (Work No. 1) is constructed to the east thereof in consequence of the construction by the Corporation under the powers of this Act of any river work:

- (11) The owners and masters of vessels shall not be liable to make good any damage which may be caused to any temporary works or plant placed by the Corporation in the river under the powers of this Act except such damage as may arise from the wilful act or default of such owners or masters or their servants or agents:
- (12) The compensation or consideration payable to the port authority by the Corporation in respect of the lands enclosed reclaimed held taken or used and of all permanent or temporary works placed in the river under the powers of this Act shall be assessed in accordance with the provisions of section 254 (Consideration for licence to be previously approved) of the Port of London (Consolidation) Act 1920:
- (13) The Corporation shall bear and pay to the port authority the reasonable cost of any alterations to any existing moorings which in the opinion of the port authority may be rendered necessary or desirable by reason of the execution of any works in the river under the powers of this Act:
- (14) Except as provided by this Act nothing in this Act shall prejudice or derogate from the estates rights interests privileges liberties or franchises of the port authority or alter or diminish any power authority or jurisdiction vested in the port authority at the commencement of this Act by virtue of the Port of London Acts 1920 to 1959:
- (15) Nothing in this Act shall authorise the Corporation to discharge or allow to escape either directly or indirectly into the river or its tributaries any offensive or injurious matter in suspension or otherwise or shall affect the operation of sections 226 to 239 of the Port of London (Consolidation) Act 1920 (which relate to pollution):

Provided that this paragraph shall not apply in relation to the alteration or diversion of the outfall of any drain sewer channel or watercourse by the Corporation under the powers of this Act:

- (16) Any difference arising between the Corporation and the port authority under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

PART IV
—cont.Lights on
temporary
works.

37.—(1) The Corporation shall at or near any part of any temporary work placed or erected by them in the river Thames below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights and take such other steps for the prevention of danger to navigation as the port authority may from time to time require or approve.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a fine not exceeding twenty pounds and in the case of a continuing offence to an additional fine not exceeding two pounds for every day on which after conviction thereof they so fail.

Abatement
of works
abandoned
or decayed.

38. If any work constructed by the Corporation under the powers of this Act is abandoned or suffered to fall into decay and is either wholly or partially in the river Thames below high-water mark of ordinary spring tides or in such other position that it is or is likely to become a danger to or interference with navigation or other public rights in the said river the port authority may by notice in writing require the Corporation at their own expense either to repair and restore the work or (if the work is no longer required by the Corporation) to abate or remove the same and restore the site thereof to its former condition and if during the period of thirty days from the date on which such notice is served on the Corporation they have failed to take steps to comply with such notice the port authority may abate and remove the work or any part of it and restore the site thereof to its former condition and the port authority may recover from the Corporation the expense of so doing.

Damage to
or destruction
of works.

39.—(1) If any works authorised by this Act in the river Thames below high-water mark of ordinary spring tides are damaged or destroyed the Corporation shall lay down such buoys exhibit such lights or take such other means for preventing danger to navigation as shall from time to time be directed by the port authority and shall apply to the port authority for directions as to the means to be taken.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a fine not exceeding ten pounds and in the case of a continuing offence to an additional fine not exceeding one pound for every day on which after conviction thereof they so fail.

Saving for
Thames River
(Prevention
of Floods)
Acts.

40. Nothing in this Act shall exempt the Corporation from any of the provisions of the Thames River (Prevention of Floods) Acts 1879 to 1957 or diminish alter or in any way affect the powers rights duties responsibilities or obligations of any person or body under any of the provisions of those Acts.

PART V

GENERAL

41. A judge of a court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

42. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

43. Where under this Act any difference (other than a difference to which the provisions of the Lands Clauses Acts apply) is to be referred to or settled by arbitration then unless otherwise provided such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or failing agreement to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers. Arbitration.

44. The costs charges and expenses preliminary to and of and incidental to the preparing obtaining and passing of this Act shall be paid by the Corporation out of the general rate of the city. Costs of Act.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ..	8 & 9 Vict. c. 18.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Electric Lighting Act 1882	45 & 46 Vict. c. 56.
London County Council (Subways) Act 1893	56 & 57 Vict. c. ccii.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Port of London (Consolidation) Act 1920	10 & 11 Geo. 5 c. clxxiii.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Civil Defence Act 1939	2 & 3 Geo. 6 c. 31.
Town and Country Planning Act 1947 ..	10 & 11 Geo. 6 c. 51.
Lands Tribunal Act 1949	12 13 & 14 Geo. 6 c. 42.
Public Utilities Street Works Act 1950 ..	14 Geo. 6 c. 39.
City of London (Various Powers) Act 1954	2 & 3 Eliz. 2 c. xxvii.
British Transport Commission Act 1958 ..	6 & 7 Eliz. 2 c. xlv.

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